

Kunwar Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 February 2020 · Writ - C No. 2339 of 2020 · **Writ disposed; Executive Engineer to hear objections and pass a speaking final order; coercive action stayed for a limited period; Section 127 appeal left open.**

HEADNOTE

A consumer who challenged a final assessment and recovery on the ground of denial of hearing and non-compliance with the U.P. Electricity Supply Code, 2005 was not granted certiorari on the merits. The High Court directed him to appear before the Executive Engineer with his objection and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for eight weeks or until that disposal, and left any remaining grievance to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Kunwar Singh filed a writ petition seeking certiorari to quash a final assessment order dated 4 September 2019 and recovery proceedings, and a mandamus to decide his representation dated 9 January 2020. He alleged that the electricity department was taking coercive action without giving him a hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the electricity department were heard on 7 February 2020.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

assessment-hearing-and-section-127-relegation

HOLDING

Without deciding the merits of the 4 September 2019 assessment, the Court directed the petitioner to appear before the Executive Engineer on 2 March 2020 with his objection and evidence; required a speaking and reasoned final order within four weeks thereafter; stayed coercive action for eight weeks or until disposal of the objection, whichever earlier (automatically vacated on default); and held that if the petitioner is aggrieved by that final order, an appeal under Section 127 of the Electricity Act, 2003 would lie. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections, the Court left any further challenge to that order to a Section 127 appeal rather than retaining or allowing the writ on merits. ¶ 1

alternative-remedy-section-127-appeal The Court expressly kept open an appeal under Section 127 of the Electricity Act, 2003 if the petitioner is aggrieved by the Executive Engineer's final order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE FINAL ASSESSMENT DATED 4 SEPTEMBER 2019 AND ALLEGED NON-COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court took a lenient view and directed a hearing and speaking order without construing any Supply Code clause or quashing the assessment. ¶ 1